

Cogstate Limited

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ASX Announcement

30 June 2025

Securities Trading Policy

Cogstate Ltd (ASX:CGS) has completed a review and update of its Securities Trading Policy. A copy of the revised policy is attached in accordance with ASX Listing Rule 12.10.

This announcement was authorised for release by the Board of Directors of Cogstate Ltd.

About Cogstate

Cogstate Ltd (ASX:CGS) is the neuroscience technology company optimising brain health assessments to advance the development of new medicines and to enable earlier clinical insights in healthcare. Cogstate technologies provide rapid, reliable and highly sensitive computerised cognitive tests across a growing list of domains and support electronic clinical outcome assessment (eCOA) solutions to replace costly and error-prone paper assessments with real-time data capture. The company's clinical trials solutions include quality assurance services for study endpoints that combine innovative operational approaches, advanced analytics and scientific consulting. For over 20 years, Cogstate has proudly supported the leading-edge research needs of biopharmaceutical companies and academic institutions and the clinical care needs of physicians and patients around the world. In the Healthcare market, Cogstate seeks to provide primary care physicians and consumers with brief, accurate and scientifically validated digital measures of cognition, with a focus on easy to use, self-administered tests that inform patients and save physician time. In this market, Cogstate has partnered with pharmaceutical company, Eisai, to distribute Cogstate assessments in Asia. For more information, please visit www.cogstate.com.

For further information contact:

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Securities Trading Policy

Version: 26 June 2025

Securities Trading Policy

**Cogstate Limited (ABN 80 090 972 723) and its subsidiaries
(Cogstate)**

1 Introduction and Purpose

1.1 Background and Purpose

Cogstate (also, in this policy, “the **Company**”) is committed to ensuring that the Company and its employees act lawfully at all times in their Trading in Company Securities. This Securities Trading Policy (**Policy**) regulates Trading by Directors, employees of Cogstate and their Closely Connected Persons and Entities in Company Securities.

Directors and all employees must comply with the insider trading prohibitions of the Corporations Act at all times. Any person who possesses inside information about any company must not Trade in Securities of that company, regardless of the terms of this Policy or any written clearance given under this Policy in respect of Company Securities.

The purpose of this policy is to ensure compliance by the Company and its Directors and employees with insider trading laws, protecting against a breach of those laws as well as reputational damage to the Company arising from inappropriate trading. It sets out when and how employees can Trade in Company's Securities and the steps the Company takes to prevent insider trading.

1.2 Scope

This Policy applies to Directors, all employees and Closely Connected Persons and Entities, all of whom are expected to read it carefully and familiarise themselves with the requirements and procedures detailed in it. Directors and Restricted Employees must also take reasonable steps to advise their Closely Connected Persons and Entities of this Policy and procure that they comply with this Policy as if they were a Director or Restricted Employee (as applicable).

The Cogstate Board of Directors (“the Board”) considers insider trading to be both illegal and unethical. Any breach of this Policy will be regarded as serious misconduct.

If you have any questions about this Policy please contact the Company Secretary.

1.3 Definitions

Capitalised terms used in this Policy not otherwise defined throughout are defined in the Schedule.

2 Key principles of insider trading prohibition

2.1 Conduct prohibited by law

Under the Corporations Act, if a person possesses "inside information" in relation to Securities of the Company or any other company, the person must not:

- a) Deal in those Securities; or
- b) Procure another person to Deal in those Securities; or
- c) directly or indirectly communicate the information, or cause the information to be communicated, to another person if the first-mentioned person knows, or ought reasonably to know, that the other person

would, or would be likely to, Deal in those Securities in any way or Procure a third person to Deal in those Securities.

Importantly, given the broad definition of "Procure", a person who Deals in Securities through a trust or company while in possession of inside information may contravene the insider trading prohibitions in the Corporations Act and this Policy.

2.2 When a person possesses inside information

A person possesses inside information in relation to Securities of the Company or another company where:

- a) the person possesses information that is not generally available and, if the information were generally available, a reasonable person would expect it to have a material effect on the price or value of the Securities; and
- b) the person knows, or ought reasonably to know, that the information is not generally available and, if it were generally available, a reasonable person would expect it to have a material effect on the price or value of the Securities.

Inside information may include matters of supposition, matters that are not yet certain and matters relating to a person's intentions. A reasonable person would be taken to expect information to have a material effect on the price or value of Securities if the information would, or would be likely to, influence persons who commonly acquire Securities in deciding whether or not to acquire or dispose of the Securities.

Directors and employees should only assume that such inside information in respect of the Company or another Australian company is generally available if it has been announced to ASX.

Trading in Securities of a foreign company will be governed by the laws of the local jurisdiction and where a Director or employee believes they may possess inside information (or equivalent) in respect of that foreign company, they should seek legal advice in respect of insider trading laws of that jurisdiction.

2.3 A person does not need to be an "insider"

A person can possess inside information in respect of a company, even if they are not associated in any way with that company. It is irrelevant how the inside information was obtained.

2.4 Penalties

A person who Trades in Securities while they possess inside information or communicates that information in the circumstances described in paragraph 2.1(c) above may be liable for both significant civil and criminal penalties.

In addition, a breach of this Policy may lead to disciplinary action by the Company, including termination of employment with the Company.

3 Restrictions on trading

3.1 General principles for all Trading

Directors and all employees must comply with the following general principles in relation to Trading in Securities:

- a) Directors and employees must comply with the insider trading provisions of the Corporations Act at all times and must not Trade in Securities whilst in possession of inside information in respect of those in Securities; and
- b) Directors and employees must not derive personal advantage from information which is not generally available and which has been obtained by reason of their connection with the Company.

3.2 Closed Periods

Directors, Restricted Employees and Closely Connected Persons and Entities must not Trade in Company Securities during the following Closed Periods:

- a) One business day before the Company's year end until the business day after the release of the full year results;
- b) One business day before the Company's half year end until the business day after the release of the half yearly results;
- c) if a quarterly report is required to be released, one business day before the Company's quarterly balance date until the business day after the release of the quarterly report;
- d) two weeks before the Company's Annual General Meeting until the business day after the Annual General Meeting; and
- e) any additional periods imposed by the Board from time to time (for example when the company is considering matters which are subject to Listing Rule 3.1A).

However, even if a Closed Period is not operating, Directors, Restricted Employees and Closely Connected Persons and Entities must not Trade in Company Securities at that time if they are in possession of inside information.

3.3 Dealings which may occur during a Closed Period

A Director, Restricted Employee or Closely Connected Person and Entity who is not in possession of inside information in relation to the Company may Trade in Company Securities in the circumstances described below:

- a) **(No change in beneficial ownership)** Trades in Company Securities where the Trading does not result in a change of beneficial interest in the Securities;
- b) **(Transfers into a superannuation fund)** Transfers of Company Securities already held into a superannuation fund or other saving scheme in which the Director, Restricted Employee or Closely Connected Person and Entity is a beneficiary;
- c) **(Investment in fund etc)** An investment in, or Trading in units of, a fund or other scheme (other than a scheme only investing in Company Securities) where the assets of the fund or other scheme are invested at the discretion of a third party;
- d) **(Director or Restricted Employee acting as trustee)** Where the Director, Restricted Employee or Closely Connected Person and Entity is a trustee or a director of a corporate trustee, Trading in Company Securities by that trust provided the Director, Restricted Employee or Closely Connected Person and Entity is not a beneficiary of the trust and any decision to Trade during a Closed Period is taken by the other trustees or directors or by the investment managers independently of the Director, Restricted Employee or Closely Connected Person and Entity;

- e) **(Accepting a takeover offer)** Undertakings to accept, or the acceptance of, a takeover offer, or participation in a scheme of arrangement;
- f) **(Rights issue, security purchase plan, distribution reinvestment plan etc)** Trading under an offer or invitation made to all or most of the Company's security holders, such as a rights issue, a security purchase plan, a dividend or distribution reinvestment plan or an equal access buy-back, where the plan that determines the timing and structure of the offer has been approved by the Board. (This extends to decisions relating to whether or not to take up the entitlements and the sale of entitlements required to provide for the take up of the balance of entitlements under a renounceable pro rata issue);
- g) **(Exercise of options or rights)** The exercise (but not the sale of Securities following exercise) of an option or a right under an employee incentive scheme.;
- h) **(Share qualification)** The acquisition of shares by a Director to obtain a share qualification.

Please note that the Policy requirements with respect to prior written clearance and subsequent notification continue to apply to Trading under one of the above exceptions - see paragraphs 3.5 and 3.6.

3.4 Exceptional Circumstances for Trading during Closed Periods

A Director, Restricted Employee or Closely Connected Person and Entity who is not in possession of inside information in relation to the Company may, subject to applicable law, Trade in Company Securities during a Closed Period if:

- a) the Designated Officer determines that an Exceptional Circumstance applies to the Director, Restricted Employee Closely Connected Person and Entity; and
- b) prior written clearance is granted by the Designated Officer in accordance with this Policy to permit the Director, Restricted Employee or Closely Connected Person and Entity to Trade in Company Securities during the Closed Period.

A Director, Restricted Employee or Closely Connected Person and Entity seeking clearance to Trade during a Closed Period must satisfy the Designated Officer that Exceptional Circumstances exist and that the proposal to Trade in Company Securities during a Closed Period is the only reasonable course of action available. Directors, Restricted Employees and Closely Connected Persons and Entities must apply for clearance in accordance with paragraph 3.5 below.

For the purpose of this Policy, **Exceptional Circumstances** means, in relation to a Director or Restricted Employee:

- a) **(Severe financial hardship)**: a pressing financial commitment that can only be satisfied by selling the relevant Company Securities;
- b) **(Tax liability)**: a tax liability of such a person would constitute severe financial hardship only if the person has no other means of satisfying the liability. A tax liability relating to Securities received under an employee incentive scheme would also not normally constitute severe financial hardship or otherwise be considered an exceptional circumstance for the purpose of obtaining proper written approval to sell or otherwise dispose of Securities during a Closed Period;
- c) **(Court order)**: a requirement to Trade in Company Securities as a result of:
 - i. a court order;
 - ii. court enforceable undertakings (eg as part of a bona fide family settlement); or
 - iii. some other overriding legal or regulatory requirement; or

d) **(Other circumstances)**: any other circumstances considered exceptional by the Designated Officer;

3.5 Prior written clearance – all Trading by Directors and Restricted Employees

Directors, Restricted Employees and Closely Connected Persons and Entities must seek prior written clearance before undertaking any Trading in Company Securities. This requirement applies to all Trading both inside and outside of a Closed Period.

In order to seek prior written clearance to Trade, Directors, Restricted Employees and Closely Connected Persons and Entities must submit a written request to the Designated Officer before the proposed trade date. Such written request must include a statement that the Director, Restricted Employee or Closely Connected Persons and Entities seeking approval does not have inside information relevant to the Securities or proposed Trade, and they are not aware of any reason why approval should not be provided. The Designated Officer may request such information as considered appropriate in the circumstances.

The Designated Officer's discretion will be exercised with caution and having regard to the importance of minimising both the risk and appearance of insider trading. Directors, Restricted Employees and Closely Connected Persons and Entities should be aware that the Designated Officer is not obliged to provide the clearance to Trade. A clearance to Trade may be withdrawn to the extent new information or circumstances arise that, had they been known at the time the initial clearance to Trade was granted, would have resulted in the Designated Officer determining that such clearance would be inappropriate.

Any decision of the Designated Officer to refuse clearance to Trade is final and binding and must be kept confidential by the Director, Restricted Employee or Closely Connected Person and Entity. The Designated Officer is not required to give reasons should clearance be refused.

Directors, Restricted Employees and Closely Connected Persons and Entities may only engage in the proposed Trading if written clearance is given. Any prior written clearance given for trading will be valid for 21 days from the date it is given.

If any Director, Restricted Employee or Closely Connected Person and Entity comes into possession of inside information after receiving a clearance to Trade, they must not Trade despite having received the clearance.

3.6 Subsequent notification - all Trading by Directors and Restricted Employees

Directors, Restricted Employees and Closely Connected Persons and Entities must provide the Company Secretary with subsequent written notification of all Trading in Company Securities within two business days, regardless of whether prior written clearance has been given for that Trading.

Directors must provide sufficient details of all Trading to enable the Company to file a notice in accordance with the ASX Listing Rules. The Company will also be obliged to notify ASX whether the Trading by a Director occurred during a Closed Period where prior written clearance was required and, if so, that prior written clearance was provided.

The Company Secretary will inform the Board of the details for all Trading notified to ASX.

3.7 Restriction on Short term Trading - all Trading

Except as stated below, Directors and employees must not engage in short term Trading of Company Securities.

In general, the acquisition of Securities with a view to resale within a 6 month period and the sale of Securities with a view to repurchase within a 6 month period would be considered to be transactions of a short term nature.

Provided that Directors and employees are not in possession of inside information, this prohibition does not restrict the sale of Securities following the vesting or exercise of options under any employee share scheme.

3.8 Restriction on Short Selling - all Trading

Directors and employees must not engage in short selling of Company Securities. Short selling involves selling Securities that a person has borrowed (rather than those that they own) with a view to repurchasing them later at a lower price and returning them to the lender.

In general, the execution of a short sale in reliance on an existing securities lending arrangement to have a 'presently exercisable and unconditional right to vest' the products in the buyer at the time of sale would be considered to be a short sale transaction.

Short selling can send a negative message about the level of confidence in the prospects of the Company. It could also be speculated that short selling of Company Securities by a Director or employee is due to their knowledge or awareness of negative information about the Company that the market is not aware of or had not fully absorbed.

3.9 Restriction on Margin loans and other security interests

No Director, Restricted Employee or Closely Connected Person and Entity may enter into a margin loan or similar funding arrangement to acquire any Company Securities, (which includes transferring Securities into an existing margin loan account, or selling Securities to satisfy a call pursuant to a margin loan) or grant lenders any rights over their Company Securities.

3.10 Restriction on Hedging and Derivatives

Directors and Restricted Employees must not use, or allow to be used, any Derivatives or other products which operate to limit the economic risk of holding unvested Company Securities or Company Securities which are subject to holding locks.

4 Other matters

4.1 Record keeping

The Board will ensure that records are made capturing the details of all applications by Directors, Restricted Employees and Closely Connected Persons and Entities for approval under this Policy and the decisions made in relation to those applications.

4.2 Changes to Policy

If any material changes are made to this Policy, the Company will give the amended Policy to ASX for release to the market within 5 business days of the material change taking effect.

Amendments to the Policy which are likely to constitute a material change include:

- a) changes to the Closed Periods;
- b) changes with respect to Trading in Company Securities which is not subject to a Closed Period; and
- c) changes with respect to the Exceptional Circumstances in which Directors and Restricted Employees may be permitted to Trade during a Closed Period.

4.3 Adoption of Policy and annual Board review

This Policy was adopted by the Board on the date on the front cover of the Policy and takes effect from that date and replaces all previous securities trading policies in this regard.

The Board will review this Policy annually. The Company Secretary will communicate any amendments to employees as appropriate.

4.4 Questions

If you have any questions about this Policy, or require further information, please contact the Company Secretary.

Schedule 1 Definitions

For the purposes of this Policy:

ASX Listing Rules means the listing rules of ASX Limited;

Closed Period means the periods set out in Section 3.5;

Closely Connected Persons and Entities means close family members of employees (including the spouse, de facto partner of, or any children residing with a Director or any such employee) and any company, trust, self-managed or other super funds and entities which are controlled by a Director or employee or their close family members.

Corporations Act means the Corporations Act 2001 (Cth);

to **Deal** in Securities means to apply for, acquire or dispose of Securities, or enter into an agreement to do any of those things, and **Dealing** has a corresponding meaning;

Derivative has the meaning in section 761D of the Corporations Act and includes options, forward contracts, futures, warrants, swaps, caps and collars;

Designated Officer means:

- a) in respect of a Director and the CEO, the Chair of the Board of Directors;
- b) in respect of the Chair of the Board of Directors, the CEO; and
- c) in respect of a Restricted Employee other than the CEO, the CEO.

or such other person appointed by the Board as a Designated Officer for the purposes of this Policy, with copies of communication to be shared with the Company Secretary;

Directors means directors of any company in the Company;

to **Procure** another person to Deal in Securities includes inciting, inducing or encouraging a person to Deal or not Deal in Securities;

Restricted Employees means the:

- a) Chief Executive Officer;
- b) Chief Financial Officer;
- c) Company Secretary;
- d) General Counsel;
- e) Chief Scientific Officer;
- f) Chief Medical Officer;
- g) Chief Technical Officer;
- h) Chief Commercial Officer;

- i) Chief People Officer;
- j) Chief Innovation Officer;
- k) Executive Vice President and Vice President level roles;
- l) employees employed in the finance department;
- m) employees employed in the Company's strategic planning department;
- n) employees who have access to the emails, documents or files of the above positions;
- o) any other employee who has authority and responsibility for planning, directing and contracting the Company's activities; and
- p) employees nominated by the Board as Restricted Employees (and who are notified accordingly), whether employed by Cogstate or another member of the Company;

Securities includes shares, options, rights, debentures (including convertible notes), interests in a managed investment scheme (including an option over an unissued unit or other interest in the scheme, and a renounceable or non-renounceable right to subscribe for a unit or other interest in the scheme), Derivatives, options over an unissued a share in, or debenture of, any company, a renounceable or non-renounceable right to subscribe for a share in, or debenture of, any company and other financial products covered by s1042A of the Corporations Act; and

Trade means to Deal in Securities or Procure another person to Deal in Securities, and **Trading** has a corresponding meaning.